Montgomery County District Court

Cause No. 2025-CV-0009

Todd Lee, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	August 3, 2025
Plaintiff's counsel:	Garrett Wallace, Gardner & Morris Law Group

PARTIES

Plaintiff Todd Lee is an individual residing in Texas who was the dirver of the vehicle involved in the collision described below. Defendant is the auotmobile insurer that issued the liability and uninsured/underinsured motorist coverage in effect for the at-fault driver's vehicle at the time of the loss. Defendant may be served through its registered agent for service of process in the State of Texas.

FACTS

On August 13, 2023, Plaintiff was lawfully stopped in traffic at a controlled intersection in Katy, Texas, when the vehicle behind Plaintiff's car struck it from the rear at a speed sufficient to push Plaintiff's vehicle forward. The impact was sudden, and Plaintiff had no warning and no opportunity to aovid it. The at-fault driver admitted at the scene that he had been looking at his phone. Police responded, prepared a crsah report, and documented damage to the rear of Plaintiff's vehicle. Plaintiff reported the collision to Defendant promptly and provided the information requested. Defendant accepted the claim for evaluation under the at-fault driver's policy.

NEGLIGENCE

The at-fault driver owed a duty to operate his vehicle with reasonable care, to keep a proper lookout, and to maintain a safe distance behind vehicles ahead. He breached that duty by failing to stop in time and by driving while distracted. This breach was the proximate cause of the collision and of Plaintiff's injuries. Defendant, as the insurer responsible for the liability covergae on that vehicle, is obligated under its policy and Texas law to pay damages its insured becomes legally obligated to pay, and to handle the claim in good faith and in compliance with the Texas Insurance Code.

DAMAGES

As a direct result of the collision, Plaintiff suffered whiplash injuries to the neck and upper back, with ongoing pain, stiffness, headaches, and reduced range of motion. Plaintiff has incurred medical expenses for emergency care, imaging, physical therapy, and follow-up treatment, and will likely require additional care. Plaintiff has also lost wages from time missed at work and has experienced physical pain, mental anguish, and diminished enjoyment of daily life. Plaintiff seeks recovery of economic and non-economic damages in an amount of $75,200.00, together with pre-judgment and post-judgment interest, court costs, and all other relief to which Plaintiff may be entitled.